

Court No. - 7

Case :- WRIT - C No. - 281 of 2011

Petitioner :- Veerendra Kumar Jain

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Rahul Chaudhary

Respondent Counsel :- C.S.C,Rajesh Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Sabhajeet Yadav,J.

Learned Standing Counsel has accepted notice for the respondents no. 1 to 3 and Sri Rajesh Tripathi for the respondents no. 4 and 5. They pray for and are granted a month's time to file counter affidavit. The petitioner shall have two weeks thereafter to file rejoinder affidavit. List immediately thereafter.

Meanwhile, the electricity connection of the petitioner shall not be disconnected provided the petitioner continues to pay regular current bills month by month.

It is made clear that the respondents shall not realize any arrears during the pendency of this writ petition.

Order Date :- 6.1.2011

p.s.

(Sabhajeet Yadav, J.) (Vineet Saran, J.)

Chief Justice's Court

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Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Rahul Chaudhary

Counsel for Respondent :- C.S.C,Rajesh Tripathi

Hon'ble Govind Mathur,Chief Justice

Hon'ble Saurabh Shyam Shamshery,J.

This petition for writ is preferred to have reliefs as follows:-

"i. to issue a writ, order or direction in the nature of certiorari quashing the two bills raised simultaneously for electricity connection no. 068335;

ii. to issue a writ, order or direction in the nature of mandamus directing the respondents to rectify the bills relating to electricity connection no. 068335;

iii. to issue a writ, order or direction in the nature of mandamus restraining the respondents from making any recovery from the petitioner against any illegal demands raised for the present electricity connection bearing electricity connection no. 068335."

At the threshold, it is submitted by learned counsel for the respondent - Electricity Company that as per the Electricity Supply Code, 2005 (hereinafter referred to as "Code, 2005"), the petitioner may raise his grievance before the Consumer Grievance Redressal Forum and Ombudsman under para 7.10.

It is brought to our notice that reference of such forum has also been given in accordance with the provisions of para 7.10 in the electricity consumer bill which is available on record at page 32.

Having considered the provisions of para 7.10 of the Code, 2005, we deem it appropriate to relegate the petitioner to avail remedy under para 7.10 of the Code, 2005. The petitioner if submits any application to the Consumer Grievance Redressal Forum and Ombudsman prescribed under para 7.10 aforesaid then the same shall be considered on merits within a period of 45 days subsequent thereto.

Till disposal of the application, interim order passed by this Court on 06.01.2011 shall remain in currency.

With the directions above, the writ petition stands disposed of.

Order Date :- 2.4.2019/Shubham

(Saurabh Shyam Shamshery, J.) (Govind Mathur, C.J.)